

Plaintiff argues that the AA itself is “extremely ambiguous” because it references the FAA, and procedures of the CAA, which is contradictory. However, these are standard references made in AAs. Plaintiff has not demonstrated how there is any conflict nor how it would render the AA substantively unconscionable. And, Plaintiff cites no authority for this purported ambiguity constituting substantive unconscionability.

Plaintiff also argues that the AA states Plaintiff will have the full benefit of discovery, but Defendants claim Plaintiff is not entitled to full discovery as if he was in a civil forum. Notably, Plaintiff acknowledges that the AA contains language incorporating permissible discovery procedures under the CAA, CCP § 1283.05. Plaintiff asserts that he offered a stipulation containing this language from the AA proposing to allow discovery as expressly set forth in the AA, but that Defendants refused to include the language in the stipulation, which is the reason Plaintiff would not stipulate to arbitration. Defendants clarify that Plaintiff is arguing that Defendants are refusing to comply with their own AA, but in actuality CCP § 1283.05(e) limits discovery in arbitration by requiring leave from the arbitrator to take depositions – “Depositions for discovery shall not be taken unless leave to do so is first granted by the arbitrator or arbitrators.” Defendants also point out that the arbitrator is the gatekeeper in arbitration similar to the judge in superior court. (CCP § 1283.05(b).) Moreover, the discovery rule in arbitration applies to both Plaintiff and Defendants. Thus, Plaintiff has not established any substantive unconscionability.

Based on the foregoing, and considering the sliding scale used for claims of unconscionability, Plaintiff has only established a low degree of procedural unconscionability and no substantive unconscionability. As such, unconscionability has not been sufficiently demonstrated to warrant a defense to arbitration.

Plaintiff also argues that Defendants engaged in misconduct by publicly disclosing his surname and personal information including his social security number so, the motion should be denied. Defendants assert that there was no *intention* to make such a disclosure. Rather, the information was *mistakenly* left unredacted in the motion. And, these inadvertent errors have since been corrected. This is not a proper ground to prevent arbitration, as agreed by the parties.

Finally, Plaintiff does not oppose Defendants’ contention that Defendant, Moreno, is a third-party beneficiary.

4.

CASE #	CASE NAME	HEARING NAME
CVME2514611	SIGEL VS SIGEL	MOTION TO STRIKE DECLARATION OF HEATHER N PHILLIPS, ESQ

Tentative Ruling: Motion is Denied.

Defendant filed a motion to strike the Declaration of Heather N. Phillips, Esq. in support of Plaintiff’s opposition to Defendant’s Motion to Dismiss pursuant to Code of Civil Procedure sections 435 and 436.

On January 21, 2026, Defendant filed a Motion to Dismiss. On March 3, 2026, Plaintiff filed an opposition and Declaration of Heather Phillips in support of opposition to Motion to Dismiss. However, on March 6, 2026, Defendant filed a Notice of Withdrawal of Motion

to Dismiss. The March 17, 2026 hearing on Motion to Dismiss was taken off calendar. Thus, this motion is MOOT. Moreover, the motion fails to satisfy the required elements for a motion to strike under Code of Civil Procedure section 436 because section 436 is applicable only to a complaint, cross complaint, or pleading. (Code Civ. Proc., §§436, 435, subd. (a).) Defendant's motion to strike is not filed in response to a pleading or the Complaint.

5.

CASE #	CASE NAME	HEARING NAME
CVME2514611	SIGEL VS SIGEL	MOTION TO EXPUNGE/DECLARE INVALID NOTICE OF PENDENCY OF ACTION (LIS PENDENS)

Tentative Ruling: Motion is denied. Request for Attorney's fees denied.

A real property claim is any cause of action which would affect title to, or right to possession of, specific real property, or the use of an easement identified in the pleading. (Code Civ. Proc., § 405.4.)

Plaintiff's Complaint seeks to partition by sale of the Property against all Defendants. (Compl., ¶¶21, 25-34.) The ownership is based on tenancy in common. (*Id.* at ¶¶16, 19.) Plaintiff is unsuccessful in coming to an agreement with Defendant on the disposition of the Property. (*Id.* at ¶20.) Such claim directly affects the title to and use of the Property. This constitutes a "real property claim" within the statutory definition under section 405.4.

Defendant contends the Complaint's causes of action principally seeks monetary relief and does not plead facts demonstrating Plaintiff's present entitlement to transfer or alteration of recorded title. (Jerry Decl., pg. 2: 11-14.) However, a lis pendens is proper if the pleading contains at least one qualifying real property claim. (*Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 650.) The claim for partition is sufficient.

Probable Validity of the Claim - The lis pendens claimant bears the burden of establishing the "probable validity" of the real property claim by a preponderance of the evidence, that it is more likely than not that the plaintiff will obtain a judgment against the defendant on the claim. (Code Civ. Proc., §§ 405.3, 405.32; *J & A Mash & Barrel, LLC v. Superior Court (Tower Theater Properties)* (2022) 74 Cal.App.5th 1, 32-33.)

If conflicting evidence is presented, the judge must weigh the evidence in deciding whether plaintiff has sustained its burden. This "requires a minitrial on the merits for making a probable validity finding" rather than conducting a quasi-demurrer-like analysis. (*De Martini v. Superior Court (Gupta)* (2024) 98 Cal.App.5th 1269, 1279-1280.)

Defendant Austin Sigel submits a declaration stating he does not have any ownership interest in the Property and that his name was placed on title to the Property for non-ownership purposes, "including assistance related to financing, and not to reflect any true ownership interest."

Defendant Jerry A. Sigel testified that Plaintiff is on recorded title. (Jerry Decl., pg. 2:3.)

Plaintiff is the co-owner of the Property and the owner of an undivided one-half interest pursuant to a Grant Deed dated February 29, 2016. (Compl., ¶17; Ragonese Decl., ¶4, Exh. 1.) In reviewing the February 29, 2016 grant deed attached to Ragonese's